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Defendant Notice of Intent to Change Plea

**United States District Court for the Middle District of North Carolina United States v.
Mateo Serrano** Criminal Action No. SYN-MDNC-25-CR-0328 Docket Entry 16 Filed
November 12, 2025

Mateo Serrano, through Celia Arden, gives notice that he intends to offer a guilty plea to Count One at a hearing conducted under Federal Rule of Criminal Procedure 11. The notice requests a setting after the parties complete a written plea agreement and stipulated factual basis. It does not itself change the existing not-guilty plea.

Serrano understands that Judge Elara Venn must address him personally and determine competence, voluntariness, comprehension of the charge and consequences, awareness of surrendered trial rights, and a sufficient factual basis. He may withdraw this notice before a plea is accepted without the notice becoming evidence of guilt.

The proposed resolution concerns only the fictional conspiracy charge. It does not rely on real people, financial systems, accounts, or operational fraud details. Arden asks that the clerk schedule enough time for a focused explanation of a proposed appellate waiver and its separate complete-denial-of-allocation exception.

Consultation and Voluntary Decision

Arden has reviewed the indictment, discovery categories, potential defenses, trial rights, statutory consequences, advisory sentencing process, and proposed agreement with Serrano. He has had repeated opportunities to ask questions and has not been threatened, forced, or promised a particular sentence.

Serrano states that he can read and understand the proposed English-language documents. No interpreter or accommodation is presently requested. If a need arises before the hearing, counsel will notify the clerk promptly. Arden believes Serrano is competent to make an informed choice but recognizes that the court must conduct its own inquiry.

The defense has discussed the presumption of innocence, the government's burden beyond a reasonable doubt, confrontation, compulsory process, the right to testify or remain silent, and the requirement of a unanimous jury verdict. Serrano understands that an accepted guilty plea would surrender those trial rights. This notice does not waive them in advance and does not limit consultation with counsel.

Charge and Anticipated Factual Basis

Count One charges a conspiracy to commit wire fraud under 18 U.S.C. §§ 1349 and 1343. The anticipated factual basis will state, at a safe abstract level, that Serrano knowingly joined an agreement involving false reimbursement claims against fictional Meridian Community Supply Cooperative and that the offense continued through November 2, 2025.

The parties expect to identify an exact synthetic amount of \$186,400 and five criminally responsible participants: Serrano, Alina Pared, Corin Bell, Darius Venn, and Nessa Holt. The basis will omit credentials, account routes, claim-submission mechanics, concealment methods, and private identifiers.

Serrano does not intend to stipulate that he managed or supervised another participant. He expects to admit knowing participation while preserving the factual dispute concerning his interactions with Pared. The government may present its contrary position through the presentence process. That reserved sentencing issue does not prevent the plea if the court finds the admitted facts sufficient for Count One.

Proposed Written Agreement

The parties are preparing an integrated written agreement that will state all promises and disclaim any guaranteed sentence. It is expected to address the charge, trial rights, advisory Guidelines, restitution, acceptance of responsibility, the unresolved role question, government obligations, breach, and appellate rights.

The defense anticipates stipulating to \$186,400 in restitution and the \$100 special assessment, subject to the court's lawful judgment. The government has not promised a prison term, supervised-release period, role ruling, placement, or release date. Serrano understands that counsel's range estimate may change after the presentence investigation.

No oral or side agreement is intended. The executed writing and factual basis will be provided before the hearing. If a material term remains disputed, Serrano will not offer a plea until it is resolved in writing and reviewed with counsel. This notice cannot be used to fill a gap in the final agreement or to broaden a promise beyond the text accepted by the court.

Anticipated Waiver Inquiry

The proposed agreement is expected to surrender ordinary review of the conviction and sentence, including a statutory Guidelines appeal, while expressly preserving a narrowly defined claim based on complete denial of Serrano's personal opportunity to allocute under Rule 32. The final executed text will control.

Arden requests that the court explain the broad rule and the exception separately. Serrano should be asked whether he understands that preserving a role objection for district-court sentencing does not necessarily preserve an appellate challenge to the resulting calculation. He should also be asked to describe the allocution exception in his own words.

The exception is not a prediction that sentencing procedure will be defective. The court remains expected to comply fully with Rule 32. The proposed claim-specific structure merely identifies what the parties intend to waive and retain. This notice paraphrases the anticipated arrangement to facilitate scheduling; it does not substitute for the final clause or the personal Rule 11 examination.

Guidelines and Role Issue

Because the charged conduct allegedly continued through November 2, 2025, the parties anticipate use of the 2025 Guidelines Manual, subject to the court's independent determination. They agree that exactly five participants were criminally responsible but disagree about whether Serrano managed or supervised Pared as a person.

The government expects to seek a three-level adjustment under U.S.S.G. § 3B1.1(b). Serrano expects to object. Neither side relies on management of property, assets, or activity alone. The anticipated agreement will leave the district-court objection open while addressing the appellate consequences through the waiver.

No presentence report exists, and this notice offers no final calculation. Counsel's preliminary alternatives assume criminal-history category I, but the probation office must verify every component after an accepted plea. A hearing on the role issue, if needed, belongs at sentencing. The Rule 11 proceeding should establish that Serrano understands the difference between admitting guilt and contesting a later advisory recommendation.

Requested Hearing Procedure

The defense asks the clerk to set a Rule 11 hearing on or after November 18, 2025, subject to the court's availability. Serrano will appear personally with Arden. Ives will appear for the fictional United States. A verbatim public transcript should record the court's personal questions and Serrano's answers.

Before the hearing, the parties will tender clean copies of the proposed agreement and factual basis. They will not attach discovery, private history, or any presentence material. If the court identifies an unexplained term, Serrano requests time to confer rather than an assumption that counsel's description supplies his understanding.

The current release conditions remain in force. Serrano will continue to appear as directed and avoid prohibited case-related contact. The requested setting does not alter trial deadlines unless a later order says so. If Serrano elects not to proceed, counsel will notify the court, and the not-guilty plea will remain operative.

Certification and Reservation of Rights

Arden certifies that she discussed this notice with Serrano and that he authorized its filing. She further certifies that the parties have conferred about a proposed November 18 setting and that Ives does not oppose scheduling adequate time for the Rule 11 inquiry.

The defense reserves every right until a plea is accepted. The government retains its burden, and the indictment remains an allegation. Filing this notice does not concede an aggravating role, waive a motion, establish restitution, or bind the court to an anticipated agreement.

All names, entities, amounts, and events are synthetic. The document omits private or operational information and is suitable for the public docket. Counsel requests that Tessa Wren serve the setting on both parties and provide instructions for tendering execution copies without placing draft negotiations on the docket.

Respectfully submitted November 12, 2025.

Celia Arden Fictional Defense Counsel for Mateo Serrano